

Our ref: Apollo Place Data Centre (SSD-67407231)

Mr Pawan Lala
Assistant Development Manager
EMKC Cubed Pty Ltd
Level 11, 37 York Street
Sydney NSW 2000

13 February 2024

Subject: Planning Secretary's Environmental Assessment Requirements – Industry Specific

Dear Mr Lala

Please find attached a copy of the Planning Secretary's Environmental Assessment Requirements (SEARs) for the preparation of an Environmental Impact Statement (EIS) to accompany the State significant development application (DA) for the Apollo Place Data Centre (SSD-67407231).

Based on the information provided in your application, industry-specific SEARs have been issued for your project.

Please contact the Department of Planning, Housing and Infrastructure (the Department) as soon as possible if your project changes. If the changes are significant, a scoping report may be required and the SEARs may need to be re-issued. The Department may also need to consult with public authorities in accordance with Part 8 of the Environmental Planning and Assessment Regulation 2021 (EP&A Regulation).

If required, the Planning Secretary may modify your SEARs to ensure the environmental assessment of the project covers all relevant matters and is consistent with contemporary assessment practice.

Your SEARs will expire two years from the date of issue (or the date they were last modified) unless the Planning Secretary has granted an extension. If you would like to seek an extension, you should contact the department at least three months prior to the expiry date.

If your DA and EIS is not submitted within two years (or by the agreed extension date), you will need to make a new application for SEARs to progress your project.

Additional assessment requirements

The Department has identified assessment requirements additional to those attached. These requirements, in addition to the industry-specific SEARs, are provided below and should be taken to be the collective SEARs for the project:

- Statutory and strategic context – The EIS must:

- describe how the proposed development will interact with the approved data centre at 1 Sirius Road (SSD-9741), including details of any shared infrastructure, car parking and ancillary facilities
 - provide an assessment of the development against the development standards in the Lane Cove Local Environmental Plan 2009, particularly floor space ratio and building height, including where there is any departure from these standards and justification for any departures.
- Design options analysis – The EIS must:
 - identify design options considered during the iterative process and demonstrate the proposed development has been optimised to provide an integrated built-form design and to minimise amenity impacts by having regard to the relevant evaluation criteria in the Government Architect's Better Placed design policy.
 - include a comprehensive options analysis of all commercially available cooling and back-up power systems.
- Operational noise – The EIS must:
 - include a detailed analysis of meteorological conditions in accordance with Fact Sheet D of the Noise Policy for Industry
 - utilise a calibrated and validated operational noise model that considers the noise contribution from the neighbouring data centre at 1 Sirius Road (SSD-9741)
 - evaluate the cumulative data centre operational noise for any potential annoying noise characteristics such as tonality, intermittency and dominant low-frequency content in accordance with Fact Sheet C of the Noise Policy for Industry
 - identify all design and mitigation measures required to ensure operational noise contribution from the proposed Apollo Place Data Centre at surrounding residential receivers is at least 10 dB below the noise contribution from the neighbouring data centre at 1 Sirius Road (SSD-9741).
- Air quality – The EIS must assess cumulative air quality impacts and detail how the proposed development may alter the dispersion of pollutants from the Lane Cove Tunnel ventilation stack at 3 Sirius Road.

Preparing your EIS

Your environmental impact statement (EIS) must be prepared having regard to the department's *State Significant Development Guidelines* including the *Preparing an Environmental Impact Statement Guideline*. All relevant guides for State significant projects that are referenced in the SEARs are available at: www.planning.nsw.gov.au/Policy-and-Legislation/Planning-reforms/Rapid-Assessment-Framework.

During the preparation of your EIS, you are required to consult with various parties, including the department and any relevant agencies, in accordance with *the Undertaking Engagement Guidelines for State Significant Projects*. For more information, please visit the [Prepare EIS page](#) on the NSW planning portal. Agency contact details can be found at:

<https://www.planningportal.nsw.gov.au/major-projects/assessment/guide-agency-directory>.

You will need a Registered Environmental Assessment Practitioner (REAP) to declare that your EIS meets certain standards in relation to its completeness, accuracy, quality and clarity before it is submitted to the department, as per Division 5 of Part 8 of the Regulation. A pro forma declaration can be found in [Appendix B of the *Preparing an Environmental Impact Statement Guideline*](#).

Community consultation

The Department wishes to emphasise the importance of effective and genuine community consultation. A comprehensive open and transparent community consultation engagement process must be undertaken during the preparation of the EIS. This process must ensure that the community is provided with a good understanding of what is proposed (including a description of any potential impacts) and that they are actively engaged in issues of concern to them.

Please note, your EIS must include clear evidence that this consultation has been undertaken, along with justification for the consultation method(s) used.

Biodiversity Development Assessment Report

Any development application that is required to be submitted with a Biodiversity Development Assessment Report must use the template available at:

<https://www.environment.nsw.gov.au/research-and-publications/publications-search/guidance-for-the-biodiversity-development-assessment-report-template>.

Lodging your development application (DA)

Once you submit your EIS, we will check it for completeness to confirm it addresses the requirements in Part 8 of the Regulation. **The EIS must include a comprehensive description and assessment of the likely impact of all stages, infrastructure and activities that form part of the development, as required under section 192 of the Regulation.**

To minimise delays, **please contact the Department at least two weeks before you submit your EIS to confirm the DA fee payment arrangements.**

Please note that **your DA is not taken to be lodged until the DA fee has been paid.**

Information needed to determine the DA fee

Your application will need to be accompanied by a Quantity Surveyor's Report supporting the estimated cost of works for your project. You must ensure that the information in the report is consistent with the information provided in your EIS and the Department's Planning Circular on the Calculation of capital investment value.

If your project involves marinas, extractive industries or any subdivision of land, you must also ensure that your Quantity Surveyor's report includes a breakdown of estimated costs for any other component of your project.

Public exhibition requirements

When you contact us regarding the DA fee arrangements, we will also confirm the consultation and public exhibition arrangements.

Matters of National Environmental Significance

Any development likely to have a significant impact on matters of National Environmental Significance will require approval under the Commonwealth *Environment Protection and Biodiversity Conservation Act 1999* (EPBC Act). This approval is in addition to approvals required under NSW legislation.

It is your responsibility to contact the Australian Government Department of Climate Change, Energy, the Environment and Water to determine if you need approval under the EPBC Act (<https://www.dcceew.gov.au/> or (02) 6274 1111).

If you have any questions, please contact Jeffrey Peng on (02) 9995 6685 or via email at jeffrey.peng@planning.nsw.gov.au.

Yours sincerely,

A handwritten signature in dark ink, appearing to read "C. Ritchie".

Chris Ritchie

Director, Industry Assessments

Planning & Assessment

as delegate for the Planning Secretary

Attached: Planning Secretary's Environmental Assessment Requirements